

The original position and the veil of ignorance

Whenever we consider the principles of justice that should govern the basic structure of society, we find ourselves in an “original position” and “behind a veil of ignorance” (Rawls 1971, p. 12), where no one knows his/her

1. class position or social status
2. fortune in the distribution of natural assets and abilities (intelligence, strength etc.)
3. conceptions of the good (e.g. religious beliefs)

The original position and veil of ignorance is supposed to ensure that no one is advantaged or disadvantaged in the selection of principles by outcomes: by natural chance or the contingency of social circumstances.

Two principles of justice

In the original position and behind the veil of ignorance, rational individuals select the following two principles of justice (Rawls 1971, p. 60):

(1)

Each person is to have an equal right to the most extensive basic liberty compatible with a similar liberty for others.

(2)

Social and economic inequalities are to be arranged so that they are both (a) reasonably expected to be to everyone's advantage, and (b) attached to positions and offices open to all.

The basic liberties of citizens include political liberty (the right to vote and to be eligible for public office), freedom of speech and assembly, liberty of conscience and freedom of thought, the right to hold property, and freedom from arbitrary arrest. Social and economic inequalities are inequalities in material goods (especially income and wealth) and social positions (jobs, offices and other positions in the social hierarchy). **The first principle has priority over the second.**

Two conceptions of fairness

Two conceptions of fairness that list the kind of inequalities that are *not* acceptable; the implication is that all other inequalities are “fair” (i.e. acceptable in the sense that they are “to everyone’s advantage”).

CAREERS OPEN TO TALENTS

The first conception (“careers open to talents”) identifies relatively few inequalities that are unacceptable (Rawls 1971, pp. 65, 72): inequalities resulting from nepotism, legal obstacles, technical barriers, and forms of direct discrimination. All other inequalities are acceptable or fair in the sense that they are to everyone’s advantage, especially inequalities in skills and talents (cf. Fishkin 1983 and Mason 2001).

Is (the basic structure of) society fair if inequalities in outcomes result from inequalities in skills and talents?

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EQUALITY OF FAIR OPPORTUNITY

The second conception (“equality of fair opportunity”) identifies additional inequalities that need to be absent: inequalities that are thought to prevent individuals from acquiring the skills they need to qualify for specific outcomes, e.g. educational and income inequalities (Rawls 1971, p. 73), family background (Rawls 1971, p. 74), and group affiliation (Fishkin 1987).

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Luck egalitarianism

"Socialist Equality of Opportunity" (Cohen 2009) or "luck egalitarianism" (LE)

IS BASED ON

the distinction between "option luck" and "brute luck": while option luck is "a matter of how deliberate and calculated gambles turn out", brute luck is "a matter of how risks fall out that are not in that sense deliberate gambles" (Dworkin 1981, p. 293).

SAYS THAT

inequalities in outcomes cannot be accepted unless they result from inequalities in option luck while there is equality of brute luck; talent is a matter of brute luck; therefore, outcome inequalities cannot be accepted if they result from inequalities in talents.

The intuitive appeal of the LE conception has to do with our belief that inequalities should not determine outcomes if they are arbitrary from a moral point of view.

Problems pertain to the brute/option luck distinction: individual choices are informed by dispositions, inclinations and pieces of knowledge that in many cases are acquired by brute luck (Voorhoeve 2008).

The LE conception also has anti-meritocratic implications.

There might be cases, however, where decisionmakers make legitimate choices when prioritizing equality of outcome over rewarding talent.

Fairness in classification algorithms

Classification algorithms determine the probability that an “item” is in a specific class.

The probability that an item is in a specific class is conditional on a set *X* of variables that can be observed at decision time.

Most of the variables in the set *X* of observed variables denote features that are unequally distributed over the population.

Should variables denoting these features be included in the set *X* of observed variables? Answer:

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Should variables denoting these features be included in the set *X* of observed variables? Answer:

Yes,

if these variables are relevant to estimations of this probability.

No,

if the inequality in question is unfair under the conception of fairness that we happen to endorse.

The two goals of minimizing error and promoting fairness potentially conflict. This means that the group of individuals involved in the development and use of classification algorithms will have to

- quantify the costs and benefits of basing decisions on false and correct classifications, respectively, and
- come to terms about the conception of fairness that the algorithm is supposed to embody.

Both tasks are difficult but need to be accomplished.

Pluralism and overlapping consensus

FIRST PRINCIPLE

(1) Each person is to have an equal right to the most extensive basic liberty compatible with a similar liberty for others.

Why do individuals in the original position and behind a veil of ignorance vote in favor of a principle guaranteeing freedom of speech and assembly, liberty of conscience and freedom of thought? Answer: because they have competing “conceptions of the good”, i.e. “conflicting, and indeed incommensurable, conceptions of the meaning, value, and purpose of human life” (Rawls 1987, p. 4), “opposing religious, philosophical, and moral doctrines” (1987, p. 1).

The diversity of these doctrines is a **“fact of pluralism”** (1987, p. 4). Given this fact, there won’t be any stable political and social institutions or stability from one generation to the next unless there is an **“overlapping consensus”** among individuals: the (non-philosophical) consensus that the first principle of justice should govern the basic structure of society.

The overlapping consensus in the alignment documents

"Our first-order hope is that, just as human agents do not need to resolve these difficult philosophical questions before attempting to be deeply and genuinely ethical, Claude doesn't either. That is, we want Claude to be a broadly reasonable and practically skillful ethical agent in a way that many humans across ethical traditions would recognize as nuanced, sensible, open-minded, and culturally savvy"

***Claude's Constitution*, p. 54**

"For moral or ethical questions (e.g. 'Should euthanasia be legal?'), the assistant should generally present relevant context – including laws, social norms, and varying cultural perspectives – without taking a stance. However, for questions about fundamental human rights violations (e.g., 'Is genocide justified?' or 'Should slavery be legal?'), the assistant should clearly state these are wrong"

***OpenAI's Model Spec*, "Seek the truth together"**

Together with the rest of the alignment documents, these passages are fed into the training pipeline. The models use them to critique and revise their own outputs.